

TENTATIVE RULING

Monterey Bay Property Management

v.

Brynn Bate
26CV004356

Defendant's Motion to Quash Service of Summons

Hearing Date: September 28, 2026

The motion of Defendant Brynn Bate (“Defendant”) to quash service of summons is **DENIED**. Defendant shall file and serve a responsive pleading to the Unlawful Detainer Complaint of Plaintiff Monterey Bay Property Management (“Plaintiff”) within five days after service on Defendant of the written notice of entry of an order denying this motion. [Code Civ. Proc. § 12167.4, subd. (a).]

Legal Standard.

Code of Civil Procedure¹ section 1167 provides that the summons in an unlawful detainer action shall be issued, served, and returned in the same manner as a summons in a civil action, except that the defendant’s response period is shortened to ten days. [Code Civ. Proc. §1167.] Thus, the general service statutes — sections 415.10 through 415.50 — govern how service must be accomplished in unlawful detainer proceedings. [*Id.*]

“A summons may be served by personal delivery of a copy of the summons and of the complaint to the person to be served.” [Code Civ. Proc. § 415.10.] This is the preferred method of service in unlawful detainer actions because it is “most likely to ensure actual notice to the defendant.” [*Board of Trustees of Leland Stanford Junior Univ. v. Ham* (2013) 216 Cal.App.4th 330, 336.]

Personal service is deemed complete upon delivery of the complaint and summons to the defendant. [Code Civ. Proc. § 415.10.] Thus, the defendant need not actually accept service. For example, in *Trujillo v. Trujillo* (1945) 71 Cal.App.2d 257, 260, the appellate court held that personal service was perfected when the process server advised the defendant that they were being served with process and left the papers as close as possible to a defendant who refused to accept them. California authorities have also held that an “individual upon whom the process server attempts to make personal service by manual delivery may not be heard to claim that service was improper because he refused to accept service.” [*Crescendo Corp. v. Sheltd, Inc.* (1968) 267 Cal.App.2d 209, 213 (citing *In re Ball* (1934) 2 Cal.App.2d 578, 578-579).]

The following rules apply when a court reviews a defendant’s challenge to the Court’s personal jurisdiction based on improper service of process. First, the plaintiff bears the burden of proving the existence of jurisdiction by establishing the facts necessary for effective service.

¹ Hereinafter, all statutory references are to the Code of Civil Procedure.

[*Summers v. McClanahan* (2006) 140 Cal.App.4th 403, 413.] Second, filing a proof of service that meets the applicable statutory requirements creates a rebuttable presumption that the service was proper. [*Floveyor Internat. Ltd. v. Superior Court* (1997) 59 Cal.App.4th 789, 795.] Third, a defendant must rebut the presumption of proper service with evidence showing they were not served as stated in the declaration. [*Rodriguez v. Cho* (2015) 236 Cal.App.4th 742, 750.] As explained in Evidence Code section 604, a presumption that shifts the burden of proof requires the fact-finder to assume the presumed fact exists unless evidence is presented to prove it does not. [*Palm Property Investments, LLC v. Yadegar* (2011) 194 Cal.App.4th 1419, 1428.] In that case, the fact-finder decides whether the presumed fact exists or not based on the evidence, ignoring any initial presumption. [*Ibid.*]

Discussion.

On September 23, 2026, Plaintiff filed the Proof of Service of Summons.² In that document, the process server, Ron Beutel, attests that he personally served Defendant with the summons and complaint on September 12, 2026, at 12:42 p.m. [Proof of Service at 1, ¶ 5a.] He also attests that “Defendant tried to avoid service, slammed door, I could see her through the window, left of the door, I stated she has been served and affixed the papers to the door, minutes later she got Docs.” [*Id.* at 1, ¶ 5b.] This evidence creates a rebuttable presumption that personal service was proper because Mr. Beutel tried to serve legal documents on Defendant personally but could not because she evaded service. [*Trujillo*, 71 Cal.App.2d at 260; *Crescendo Corp.*, 267 Cal.App.2d at 213.]

Defendant did not rebut the presumption of proper personal service. Defendant admits that she saw Mr. Beutel and entered the premises upon seeing him. [Defendant’s Decl. at ¶ 2.] Defendant also attests that she “closed the front door after entering and the man left in his truck.” [*Ibid.*] This statement suggests that Defendant was looking through the window while inside the premises, which is consistent with Mr. Beutel’s recollection. [*Ibid.*; Proof of Service at 1, ¶ 5b.] Mr. Beutel thus knew that the woman who entered the premises was Defendant. [*Ibid.*] Mr. Beutel could not personally hand the papers to Defendant because a door stood between them. [*Ibid.*] Thus, Mr. Beutel left the papers at the location closest to the Defendant and announced, “You have been served.” [*Ibid.*]

Plaintiff’s contention that Mr. Beutel must have personally handed her the documents is not required. [*Trujillo*, 71 Cal.App.2d at 260; *Crescendo Corp.*, 267 Cal.App.2d at 213.] Indeed, the rules governing personal service are to be liberally construed, and substantial compliance with the statutory mandates is sufficient to confer jurisdiction. [*County of Riverside v. Superior Court* (1997) 54 Cal.App.4th 443, 450.] Here, Plaintiff substantially complied with the personal-service-of-process rules because the process server announced service within earshot of Defendant and left the papers “pinched within the screen door and the front door frame of the Premises,” despite Defendant’s refusal to answer the door. [Defendant’s Decl. at ¶4.]

² On its own motion, the Court takes judicial notice of the Court’s file in this case, including the Proof of Service of Summons. [Evid. Code §452, subd. (d).]

Conclusion.

Defendant's motion to quash is **DENIED**, and she has five days to file a responsive pleading after service on Defendant of the written notice of entry of an order denying this motion.

Defendant shall prepare the Proposed Order consistent with this Tentative Ruling.

NOTE REGARDING TENTATIVE RULING

This tentative ruling becomes the Court's order, and no hearing shall be held unless a party contests. [Cal. Rules of Ct., rule 3.1308; Super. Ct. Monterey County, Local Rules, rule 7.9.] The party wishing to present oral argument must notify all other parties and the Court no later than 4:00 p.m. on the court day before the hearing; otherwise, **NO ORAL ARGUMENT WILL BE PERMITTED, AND THE TENTATIVE RULING WILL BECOME THE ORDER OF THE COURT, AND THE HEARING WILL BE VACATED.** You must notify the court by [email](#) or by calling the Calendar Department at 831-647-5800, extension 3040, before 4:00 p.m. on the court day before the hearing.

COURT REPORTERS AND AUDIO RECORDINGS

The parties are advised that they are entitled to a verbatim, word-for-word record of these proceedings for purposes of any appeal. Ordinarily, an official court reporter creates such a record. However, the Court does not provide court reporters for civil proceedings such as this case. Any party who wishes may retain a privately hired court reporter to create the record.

If a party seeks a verbatim record but cannot afford a privately hired reporter, the Court may, in appropriate circumstances, make an electronic recording of the hearing. [*Family Violence Appellate Project v. Superior Court* (2026) 20 Cal.5th 564, 346 Cal.Rptr.3d 841, 862-863.] Any party seeking such a recording must notify the judicial officer no later than when the matter is called. The Court makes the recording at no charge, though fees may apply if a party later requests a copy of the recording or a written transcript.